

Opinion of the Court

the effort “to obtain definitive boot evidence linking [petitioner to the crime] was in the nature of acquisition of evidence or in the nature of evaluation of evidence for the purpose of initiating the criminal process.” *Id.*, at 45. The Court concluded that it “appears” that it was more evaluative than acquisitive.

Both petitioner and Fitzsimmons appealed, and a divided panel of the Court of Appeals for the Seventh Circuit ruled that the prosecutors had absolute immunity on both claims. *Buckley v. Fitzsimmons*, 919 F. 2d 1230 (1990). In the Court of Appeals’ view, “damages remedies are unnecessary,” *id.*, at 1240, when “[c]ourts can curtail the costs of prosecutorial blunders . . . by cutting short the prosecution or mitigating its effects,” *id.*, at 1241. Thus, when “out-of-court acts cause injury only to the extent a case proceeds” in court, *id.*, at 1242, the prosecutor is entitled to absolute immunity and “the defendant must look to the court in which the case pends to protect his interests,” *id.*, at 1241. By contrast, if “a constitutional wrong is complete before the case begins,” the prosecutor is entitled only to qualified immunity. *Id.*, at 1241–1242. Applying this unprecedented theory to petitioner’s allegations, the Court of Appeals concluded that neither the press conference nor the fabricated evidence caused any constitutional injury independent of the indictment and trial. *Id.*, at 1243, 1244.²

² With respect to an issue not before us, petitioner’s claims that he was subject to coercive interrogations by some of the respondent prosecutors, the court found that the extent of immunity depended on the nature of those claims. The court reasoned that, because claims based on *Miranda v. Arizona*, 384 U. S. 436 (1966), and the Self-Incrimination Clause of the Fifth Amendment depend on what happens at trial, prosecutors are entitled to absolute immunity for those claims; by contrast, only qualified immunity is available against petitioner’s claims as to “coercive tactics that are independently wrongful.” 919 F. 2d, at 1244. Because it could not characterize the nature of those claims, the court remanded for further proceedings concerning Fitzsimmons, King, and Knight on this issue. *Id.*, at 1245.